

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 05/26/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005199

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PLAINTIFF: L3 COMMERCIAL
TRAINING SOLUTIONS AIRLINE
ACADEMY, A COMMERCIAL FLIGHT
SCHOOL

vs.

DEFENDANT: COLIN J. HENRY, ET AL

NATURE OF PROCEEDINGS: MOTION – STRIKE

RULING

In light of the filing an amended pleading on March 16, 2026, the motion of Cross-Defendant L3 Commercial Training Solutions Airline Academy to strike is moot and ordered **OFF CALENDAR**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for May, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1615162449?pwd=e5SqeATq2HOsxxD7Fhrl3Q7qPFgFZa.1>

Meeting ID: 161 516 2449

Passcode: 073961

If you are unable to join by video, you may join by telephone by calling 1-669-254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: marin.courts.ca.gov

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 05/26/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0009233

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK: C. IBARRA

PETITIONER: CHERYL RUGGIERO

vs.

DEFENDANT: BOLINAS HEARSAY NEWS,
ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER
2) MOTION – ANTI-SLAPP 425.16

RULING

Defendants Bolinas Hearsay News (“the Hearsay”), Jesse McCollum (“McCollum”), Mark Butler (“Butler”), Nicole Lavelle (“Lavelle”), and Jeff Manson’s (“Manson”) (collectively, “Defendants”) anti-SLAPP motion to strike is **GRANTED** as to all four of Plaintiff Cheryl Ruggiero’s (“Plaintiff”) causes of action. (Code Civ. Proc., § 425.16, subd. (b)(1).) Plaintiff’s request to take discovery under Code of Civil Procedure, section 425.16, subdivision (g) is **DENIED**. This ruling moots Defendants’ concurrently-filed demurrer.

Background

This is a defamation case pertaining to statements published in the Hearsay, a community-run newspaper. (Complaint, ¶ 8.) To contextualize Plaintiff’s allegations, the Court must describe her allegations in a separate, but related case pending before this Court, *Cheryl Ruggiero v. Bolinas Hearsay News et al.*, Case No. CV0007185 (“*Ruggiero I*”).¹

Plaintiff filed *Ruggiero I* in August 2025. The operative First Amended Complaint (“*Ruggiero I* FAC”) alleges that on August 5 and August 9, 2024, the Hearsay published two articles written by a José Leyva (“the Leyva Articles”). (*Ruggiero I* FAC, ¶¶ 5, 16.) Both articles accused Plaintiff of defending genocide, stating that she has vocally supported the state of Israel in its actions in Palestine. (*Id.* at Exs. A, B.) Both referred to her as a racist based on her commentary on the Israel-Palestine issue and on her participation in a group called Bolinas for Compassionate Land Use, which the articles describe as attempting to render certain Latino residents of Bolinas homeless. (*Ibid.*) In *Ruggiero I*, Plaintiff alleges that these statements and other statements in the Leyva Articles were “demonstrably false[.]” (*Id.* at ¶ 17.) Plaintiff’s causes of action in *Ruggiero I* include defamation (libel), libel per se, false light invasion of privacy, and intentional infliction of emotional distress.

¹ Defendants’ unopposed request for judicial notice is GRANTED. (Evid. Code, § 452, subd. (d).)